

DEFENDANT SRGA RESORT, LP'S MOTION FOR LEAVE TO WITHDRAW ITS ANSWER

TENTATIVE RULING: The motion is GRANTED. The matter is set for Case Management Conference on October 23, 2026, at 9:30 in Dept. B. The Clerk is directed to send notice to the parties.

Defendant SRGA Resort (SRGA) moves, pursuant to Code of Civil Procedure section 585, subdivision (b), for an order granting Defendant SRGA leave to withdraw its Answer to Plaintiff's Complaint, so that Plaintiff Jessica Fernandez may proceed to request entry of default against Defendant SRGA.

SRGA cites caselaw sanctioning a trial court's decision to permit a defendant to withdraw its operative answer. (See, *e.g.*, *Brown v. Brown* (1932) 125 Cal.App. 429, 438 [held: where no fraudulent purpose is established, appellant "is in no position to complain of the court's action in permitting his co-defendant's answer to be withdrawn"]; see also *Israel v. Super. Ct. of San Diego Co.* (1919) 43 Cal.App. 711, 713 ["That the court in permitting the defendant Bryan to withdraw his answer was acting within its jurisdiction is not and, in our opinion, cannot be, questioned in this proceeding"].)

There is no opposition to the Motion in the Court's files.

Based on the foregoing, the Motion is GRANTED.

[1] DEMURRER TO PLAINTIFF MARBIN SANTIS RUIZ'S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiff is granted 10 days' leave from notice of entry of order to amend. (See Rules of Court, rule 3.1320(g).) Defendant is directed to provide a Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendant Norberto Celerino (“Celerino”) demurs, pursuant to Code of Civil Procedure section 430.10, subdivision (e), to Plaintiff Marbin Santis Ruiz’s (“Santiz Ruiz” or “Plaintiff”) First Amended Complaint (“FAC”) on the ground that the FAC fails to state facts sufficient to constitute the Third Cause of Action for Intentional Infliction of Emotional Distress (“IIED”) against Defendant.

The FAC arises from a motor vehicle accident, wherein Celerino picked up Santis Ruiz at his residence in Stockton, California and drove him to Silvia Cellars, LLC in Napa, California for grape harvesting. (FAC, ¶ 13.) During the trip, Celerino was allegedly under the influence of alcohol and/or other substances and drove the vehicle onto opposing traffic lanes. (FAC, ¶¶ 14-15.)

B. LEGAL STANDARD

A complaint must contain “facts constituting the cause of action.” (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that “[t]he pleading does not state facts sufficient to constitute a cause of action,” “[t]he pleading is uncertain,” or “[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (§ 430.10, subds. (e)-(g).)

A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. DISCUSSION

The essential elements of a cause of action for IIED are: (1) Extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) The plaintiff’s suffering severe or extreme emotional distress; and (3) Actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.)

Celerino argues that the FAC fails to state facts to supply any of the three essential elements for the claim.

As to the first, Celerino argues that a plaintiff seeking to bring an IIED claim arising from a DUI incident needs to allege conduct beyond the act of drunk driving itself – such as intentional targeting of the plaintiff, a pattern of reckless behavior, or other aggravating circumstances that collectively rise to the level of atrocious and utterly intolerable conduct. Celerino argues the FAC does not plead such facts. (Mem., 3:15-21, citing FAC, ¶ 28.)

Celerino argues that the FAC sufficiently states an IIED cause of action because it alleges that Plaintiff made a deliberate decision to become legally intoxicated and then operate a motor vehicle while knowingly transporting Plaintiff. In support, Santis Ruiz cites to FAC ¶¶ 13-15, 27-30.

None of the authority cited by Celerino supports the proposition that a DUI-based IIED claim cannot be based solely upon the act of drunk driving itself. The Court finds that the FAC contains allegations, albeit not under the label for the IIED cause of action, sufficient to state extreme and outrageous conduct by Celerino with reckless disregard of the probability of causing emotional distress to Santis Ruiz. (See FAC ¶¶ 13-15, 27-30.) While Celerino is correct that the FAC does not allege an abundance of details which might further support that his conduct in deliberately becoming legally intoxicated while driving passengers was extreme and outrageous, a complaint is only required to plead the ultimate facts. (See Reply, 3:2-8.)

As to the second element, Celerino argues that the FAC fails to set forth facts indicating the nature and extent of the severe emotional distress. (Mem., 4:13-22, citing FAC, ¶¶ 43, 47.) In Opposition, Santis Ruiz argues that the allegations in Paragraphs 17-19 and 43 are sufficient. Other than physical injuries, the Court does not find that those paragraphs of the FAC allege *facts* as to the mental and emotional distress suffered. Moreover, Santis Ruiz offers in Opposition additional facts in this respect that can be added to an amended pleading.

As to the third element, Celerino argues that the FAC does not allege that Celerino acted with the intent of causing emotional distress to Santis Ruiz or knowledge that his conduct was substantially certain to cause distress to Santis Ruiz. (Mem., 3:22-4:12, citing *Christensen v. Sup. Ct.* (1991) 54 Cal.3d 868, 903.)

In Opposition, Santis Ruiz cites to Paragraphs 13-18, 27-30, 34, and 36 in support of his contention that the FAC properly alleges facts to state that Celerino was aware of, but acted with reckless disregard of the plaintiff and the probability that his conduct will cause severe emotional distress to Santis Ruiz.

The Court agrees with Santis Ruiz that the FAC sufficiently alleges facts to meet the element that Celerino acted with reckless disregard of Santis Ruiz and the probability that his conduct would cause severe emotional distress to Santis Ruiz. (See *Christensen, supra*, 54 Cal.3d at 905 [“The law limits claims of intentional infliction of emotional distress to egregious conduct *toward plaintiff* proximately caused by defendant. [Citation.] The only exception to this rule is that recognized when the defendant is aware of, but acts with reckless disregard of the

plaintiff and the probability that his conduct will cause severe emotional distress to that plaintiff.”].)

Based on the foregoing, the demurrer is SUSTAINED WITH LEAVE TO AMEND. The FAC shall be amended to allege facts constituting the nature and extent of Santis Ruiz’s severe emotional distress. Moreover, Santis Ruiz is invited to include, in his amended pleading, any of the additional, proposed amendments included on page 7 of his Opposition.

[2] MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Norberto Celerino (“Celerino”) moves, pursuant to Code of Civil Procedure section 435, *et seq.*, to strike the punitive damages allegations and prayer from Plaintiff Marbin Santis Ruiz’s First Amended Complaint (“FAC”).

Given that Santis Ruiz has been granted leave to amend the FAC by the Court’s concurrent ruling on Celerino’s demurrer, and given Santis Ruiz’s inclusion in Opposition of proposed amendments that can be made to the FAC to improve his punitive damages allegations and prayer, the Court finds the most efficient way to proceed is to grant the instant motion with leave to amend to allow Santis Ruiz to include those additional allegations.

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Alexander Rowland et al v. Newco Capital Group LLC et al

25CV002471

DEMURRER OF DEFENDANTS NEWCO CAPITAL GROUP LLC AND NEWCO CAPITAL GROUP VI LLC TO COMPLAINT

TENTATIVE RULING: The Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

A. PROCEDURAL MATTERS

Defendants Newco Capital Group, LLC (“Newco”) and Newco Capital Group VI LLC (“Newco LLC”) (collectively, “Defendants”) demur, pursuant to Code of Civil Procedure